

State of Alaska – Office of the Governor — 34th Alaska State Legislature – Second Session
DEPARTMENT REVIEW – PASSED LEGISLATION

BLUE SHEET

Blue Sheets are a department's final bill analysis and provides the Commissioner an opportunity to weigh in on legislation that has passed, with a recommendation to the Governor on action that may be taken— to enact the bill, to veto the bill, or to allow the bill to become Law without signature (LWOS). Much of the information requested in the Blue Sheet can be taken from the department's bill analyses (BA), which were initially submitted at the time the bill was introduced and updated throughout the legislative process.

Blue sheets are due to the GLO three days after the enrolled bill appears on basis, or sooner by request.

Department: DOC

Date: 5/19/2026

Bill Number: HB239

Short Title (as it appears on BASIS): CRIM. NEG. HOMICIDE; FAILURE TO ASSIST

What action do you recommend the Governor take?

Select one.

☐ SIGN ☐ VETO ☒ LWOS

Action Justification – Why do you recommend the above action?

Please be specific.

We are neutral on this legislation. The content is substantive and well-intended; however, any policy that contributes to the growth of the department's budget warrants careful consideration. While much of the content is not directly related to the Department of Corrections, it does have indirect impacts on departmental operations and responsibilities. The department's budget has been under significant scrutiny during the last several legislative sessions, and this bill, along with the measures incorporated into it, would contribute to additional budget growth for the department.

What does this Bill do?

In addition to providing a succinct bill summary, please also consider the following: Why is this bill needed? How does it specifically change department programs? What is the anticipated impact on the public, the private sector? Does this bill align with the priorities of Governor Dunleavy?

SCS CSHB 239(FIN) is a comprehensive Alaska criminal justice reform bill that primarily expands protections for minors, strengthens penalties for sexual offenses and exploitation,

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modernizes laws addressing online and AI-generated child sexual abuse material, and increases victim protections. The bill raises many legal protections involving minors from “under 16 years of age” to “under 18 years of age,” broadening the scope of offenses involving sexual abuse, stalking, indecent exposure, exploitation, enticement, and distribution of harmful material to minors. It also creates new felony offenses for the possession and distribution of AI-generated or digitally manipulated child sexual abuse material and expands prosecutorial authority for online exploitation crimes. In addition, the bill increases sentencing restrictions and limits suspended sentences for serious sexual and exploitation offenses. Beyond criminal penalties, the legislation restructures the Alaska Board of Parole by expanding membership and requiring representation from behavioral health, addiction recovery, criminal justice, and federally recognized tribes. It also creates a medical release program using electronic monitoring for seriously ill incarcerated individuals, establishes an Address Confidentiality Program for victims of domestic violence, stalking, and sexual assault, and requires the Department of Corrections to employ a tribal liaison to strengthen coordination with Alaska Native communities and tribes. Overall, the bill represents a significant expansion and modernization of Alaska’s criminal laws related to child protection, sexual exploitation, digital abuse, corrections policy, and victim safety.

Detailed Sectional Analysis

The full sectional analysis of the bill should be completed by the lead agency. Other departments should include an analysis for sections of the bill affecting their agencies.

- Section 68 expands the Alaska Board of Parole from five members to seven members, still appointed by the Governor and confirmed by the Legislature.
- Section 69 adds a term-limit rule: parole board members serve staggered five-year terms and may not serve more than two terms.
- Section 70 rewrites the board composition. The seven-member board must include:
 - one licensed physician, psychologist, or psychiatrist;
 - one person with criminal justice experience;
 - one person with drug/alcohol addiction recovery support or lived addiction experience;
 - one member of a federally recognized tribe in Alaska.
- Section 71 adds definitions for “crime” and “federally recognized tribe.”
- Section 72 changes the discretionary parole analysis. The board may release a prisoner if, considering age, *age at offense*, criminal history, prison behavior, treatment participation, and reentry plans, there is a reasonable probability the person can comply with the law, benefit from reintegration, not threaten public safety, and that release would not diminish

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the seriousness of the crime.

- Section 73 creates *Medical release for service of sentence by electronic monitoring*. The Commissioner may authorize it when the DOC chief medical officer finds the prisoner has a terminal, permanent, progressively degenerative, or poor-health condition and does not pose a public-safety threat, and when release would save state medical costs. The person remains monitored; tampering or leaving the approved location triggers notice to DOC. The Commissioner can revoke release immediately if eligibility changes or public safety concerns arise. Certain sex-abuse, exploitation, and animal-sexual-conduct convictions are excluded.
- Section 77 requires the Department of Corrections to employ at least one tribal liaison. The liaison's role is to support internal communication and collaboration around cultural programs and processes and to interact with communities and federally recognized tribes in Alaska.

Companion or Similar Bills

Please note companion legislation, the sponsor of the companion legislation, and identify any "rider" bills or provisions from other legislation that was included in this final bill. Please include the name of the sponsor of the "rider bill" or provision. If it was added as an amendment in a committee – please indicate the name of the legislator that sponsored the amendment.

Parts of SB62 board of parole/membership – Senator Tobin

Support/Opposition of the Bill

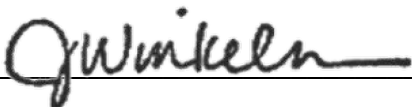
Please identify names, organizations, titles, and phones numbers of those who testified in support or in opposition of this bill.

n/a

Bill Signing ceremony suggestions (if applicable)

Please provide information for consideration for a bill signing ceremony. Information that is helpful includes: a specific conference, event, venue, date, and the names and contact information of stakeholders who should be considered for an invitation to the bill signing ceremony.

We are not the lead department on this bill

Commissioner's Signature:  Date: 5/21/26

I have reviewed the above information and provided it to the Governor's Legislative Office for

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consideration of an action by the Governor on legislation passed during the second session of the 34th Alaska State Legislature.

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